INITIATIVE PROCESS INFORMATION

Wyoming Secretary of State's Office
Election Division

This document summarizes key provisions of the initiative process in Wyoming.
Refer to the Wyoming Constitution and statutes for applicable provisions.

Governance:

Wyoming Constitution Article 3 Section 52 and W.S. 22-24-301 through 22-24-323

Requirements:

The initiative must be in bill form* (W.S. 8-1-101 through 8-1-108). The bill must be on legal size paper, attached to the application form. The entire subject of the bill must be included in the title. The enacting clause must read: "Be it enacted by the people of the state of Wyoming". The bill must have an effective date. The application must be filed with the Secretary of State. A fee of $1,000.00 must accompany the application.

**If the Secretary of State determines that the proposed bill is not in the format required, he shall provide the committee of applicants a copy of W.S. 8-1-105 and an example bill meeting the format, and shall request the committee revise and resubmit the proposed bill.*

Restrictions:

The bill may not contain more than one subject. The bill may not dedicate revenues. The bill may not make or repeal appropriations. The bill may not create courts, define the jurisdiction of courts or prescribe their rules. The bill may not enact local or special legislation. The bill may not enact anything that is prohibited by the constitution. The bill may not be substantially the same as that defeated by an initiative election within the previous five years.

Committee:

There must be a committee of three people (Committee of Applicants) who will be the principal contacts for the initiative, who may be served with legal notices and who will be responsible for statutory fees and costs.

Certification for Circulation:

The committee of applicants will submit the application and proposed bill to the Secretary of State for review. No later than 14 days after the date of submission, the Secretary of State will schedule a conference with the committee to discuss the bill and any problems with its format or contents. However, if the legislature is in session at the time the conference would otherwise by required to be held, then the conference shall be held within ten (10) days after the adjournment of the session. The committee has five days to notify the Secretary of State if the proposed bill will be amended. If so, another 14-day review and comment period occurs after the amended proposed bill is submitted. If the proposed bill will not be amended, the committee shall submit the names, signatures, addresses and the date of signing of one hundred (100) qualified electors to act as sponsors supporting the application in its final form to the Secretary of State. If the application meets all constitutional and statutory requirements, the Secretary of State will conditionally certify the application as filed. The committee then has thirty (30) days to submit one hundred (100) qualified registered voters as sponsors of the bill. The thirty (30) day requirement shall be extended by the number of days any conference (under W.S. 22-24-304(b)), is delayed as a result of the abatement of the conference during a legislative session. If the application is denied, the Secretary of State will notify the committee in writing of the grounds for denial.

Petitions:

The Secretary of State will develop the petition form which is the only form that may be circulated. At the committee's expense, the Secretary of State shall arrange for printing of petitions in sufficient numbers for statewide distribution.

Circulation, Petition Requirements:

The committee has 18 months from the date petitions are provided to file them with the Secretary of State. The committee must submit registered voter signatures representing 15% of those who voted in the preceding general election and 15% of those resident in at least two-thirds of Wyoming counties.

Only qualified sponsors/circulators may circulate petitions, and the committee of applicants must give written notice to the Secretary of State verifying the circulators' names, qualifications and addresses. Circulators must be U.S. citizens and at least 18 years old. Circulators do not have to be registered voters. Each sponsor/circulator is required to submit an affidavit upon submission of a petition affirming that signatures were made in his presence and that he is a qualified sponsor/circulator.

Circulators may not be paid based upon the number of signatures gathered, nor shall a circulator pay or offer to pay any compensation to another person for that person's signature. If circulators will be paid to solicit signatures, a statement disclosing that fact must appear on the petition. Any person who signs a name other than his own, who knowingly signs his name more than once, who signs knowing that he is not a qualified registered voter, or who makes a false affidavit or verification, can, upon conviction, be fined up to $1000 or imprisoned up to one year, or both.

Certification for the Ballot:

Within 60 days after the filing of the petition, the Secretary of State will notify the committee whether or not enough valid signatures have been obtained. If so, the Secretary of State will prepare a ballot statement and title summarizing the proposed law. An estimated fiscal impact or range of estimated fiscal impact on the State will also appear on the ballot. The proposition will then be voted on in the first statewide general election held more than 120 days after adjournment of the legislative session. If, before the election, substantially the same measure has been enacted, the petition is void.

Reporting:

As noted in W.S. 22-24-306(b), the committee of applicants shall file contributions and expenditure reports as required by W.S. 22-25-106.

Enactment:

The initiative is enacted if it receives approval of more than 50% of those voting in the general election. Election results are certified by the State Canvassing Board. An initiated law becomes effective 90 days after certification, is not subject to veto, and may not be repealed by the legislature within two years of its effective date. It may be amended at any time.